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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
12/293,300	09/17/2008	Kavita Kadam	11336.0086USWO	9477

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MERCHANT & GOULD PC
P.O. BOX 2903
MINNEAPOLIS, MN 55402-0903

EXAMINER

CLARK, AMY LYNN

ART UNIT	PAPER NUMBER
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1655

NOTIFICATION DATE	DELIVERY MODE
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04/15/2014

ELECTRONIC

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

USPTO23552@merchantgould.com

Office Action Summary	Application No. 12/293,300	Applicant(s) KADAM ET AL.	
	Examiner Amy L. Clark	Art Unit 1655	AIA (First Inventor to File) Status No

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTHS FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

- 1) ☒ Responsive to communication(s) filed on 10/14/2011.
☐ A declaration(s)/affidavit(s) under **37 CFR 1.130(b)** was/were filed on ____.
- 2a) ☐ This action is **FINAL**. 2b) ☒ This action is non-final.
- 3) ☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on ____; the restriction requirement and election have been incorporated into this action.
- 4) ☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims*

- 5) ☒ Claim(s) 18,22 and 27-29 is/are pending in the application.
5a) Of the above claim(s) ____ is/are withdrawn from consideration.
- 6) ☐ Claim(s) ____ is/are allowed.
- 7) ☒ Claim(s) 18,22 and 27-29 is/are rejected.
- 8) ☐ Claim(s) ____ is/are objected to.
- 9) ☐ Claim(s) ____ are subject to restriction and/or election requirement.

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to PPHfeedback@uspto.gov.

Application Papers

- 10) ☐ The specification is objected to by the Examiner.
- 11) ☐ The drawing(s) filed on ____ is/are: a) ☐ accepted or b) ☐ objected to by the Examiner.
Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).
Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

Priority under 35 U.S.C. § 119

- 12) ☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

Certified copies:

- a) ☐ All b) ☐ Some** c) ☐ None of the:
1. ☐ Certified copies of the priority documents have been received.
 2. ☐ Certified copies of the priority documents have been received in Application No. ____.
 3. ☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

** See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

- | | |
|---|---|
| 1) ☒ Notice of References Cited (PTO-892) | 3) ☐ Interview Summary (PTO-413)
Paper No(s)/Mail Date. ____. |
| 2) ☐ Information Disclosure Statement(s) (PTO/SB/08a and/or PTO/SB/08b)
Paper No(s)/Mail Date ____. | 4) ☐ Other: ____. |

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The present application is being examined under the pre-AIA first to invent provisions.

DETAILED ACTION

Continued Examination Under 37 CFR 1.114

A request for continued examination under 37 CFR 1.114, including the fee set forth in 37 CFR 1.17(e), was filed in this application after final rejection. Since this application is eligible for continued examination under 37 CFR 1.114, and the fee set forth in 37 CFR 1.17(e) has been timely paid, the finality of the previous Office action has been withdrawn pursuant to 37 CFR 1.114. Applicant's submission filed on 10/14/2011 has been entered.

Any rejection found in the previous Office Action and not repeated herein has been withdrawn based upon Applicant's amendments to the claims.

The text of those sections of Title 35, U.S. Code not included in this action can be found in a prior Office action.

Claims 18, 22 and 27-29 are currently under examination.

Claim Rejections - 35 USC § 112

The following is a quotation of 35 U.S.C. 112(b):

(b) CONCLUSION.—The specification shall conclude with one or more claims particularly pointing out and distinctly claiming the subject matter which the inventor or a joint inventor regards as the invention.

The following is a quotation of 35 U.S.C. 112 (pre-AIA), second paragraph:

The specification shall conclude with one or more claims particularly pointing out and distinctly claiming the subject matter which the applicant regards as his invention.

Claims 18, 22 and 27-29 are rejected under 35 U.S.C. 112(b) or 35 U.S.C. 112 (pre-AIA), second paragraph, as being indefinite for failing to particularly point out and distinctly claim the subject matter which the inventor or a joint inventor, or for pre-AIA the applicant regards as the invention.

The metes and bounds of claim 18 are rendered uncertain by the phrase "extract of the roots of the plant *Murraya koenigii*" because it is unclear if Applicant is claiming a specific type of solvent extract

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or if Applicant is claiming compounds extracted from the roots of the plant. The lack of clarity renders the claims indefinite since the resulting claims do not clearly set forth the metes and bounds of the patent protection desired.

Claim Rejections - 35 USC § 101

35 U.S.C. 101 reads as follows:

Whoever invents or discovers any new and useful process, machine, manufacture, or composition of matter, or any new and useful improvement thereof, may obtain a patent therefor, subject to the conditions and requirements of this title.

Claims 18, 22 and 27-29 are rejected under 35 U.S.C. 101 because the claimed invention is not directed to patent eligible subject matter. Based upon an analysis with respect to the claim as a whole, claim(s) 18, 22 and 27-29 is/are determined to be directed to a law of nature/natural principle. The rationale for this determination is explained below: The claims are drawn to an extract of roots of *Murraya koenigii*, which is not markedly different than the natural product and is not considered to be different from *Murraya koenigii* root found in nature because all of the compounds and properties of the extract are the same as those found in the plant itself, since no chemical alteration occurs. Furthermore, the claims do not include elements in addition to the judicial exception that add significantly more to the judicial exceptions and do not include feature that demonstrate that the recited product is significantly different from what exists in nature.

Claim Rejections - 35 USC § 103

Claims 18, 22 and 27-29 are rejected under pre-AIA 35 U.S.C. 103(a) as being unpatentable over Parangipattai chooranam (V1), in view of Inahata et al. (N).

Parangipattai chooranam teaches a formulation comprising *Murraya koenigii* petiole for treating tinea (misspelled as “tinia”) infections, wherein the extract is present in an amount of 4% in relation to the other ingredients, which reads on the amount claimed by Applicant and reads on an amount in a

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composition and 0.33% in relation to the whole formulation) and wherein the formulation can be orally administered over a period of 40 days.

Parangipattai chooranam does not teach roots of *Murraya koenigii* or that the composition can be topically administered.

Inahata teaches an antimicrobial effective against various microorganisms comprising an extract of the whole plant (which reads on roots, since roots are part of the whole plant) of *Murraya koenigii* (See paragraphs 0008 and 0009) extracted with a polar solvent, wherein the solvent can be methanol (See paragraph 0010), and wherein the extract contains a carbazole compound in an amount of 1-50%. Inahata further teaches that the extract can be used in a cosmetic composition or orally administered (See abstract and throughout the specification). Please note that the instantly claimed carbazole compound and the amount of the carbazole compound present is inherent to the extract taught by Inahata because the extract is the same extract as that disclosed in Applicant's specification.

It would have been obvious to modify the composition used in the method taught by Parangipattai chooranam by using an extract containing roots of *Murraya koenii* for treating tinea infections because at the time the invention was made, it was known that an extract of *Murraya koenii* is effective in treating tinea infections and that an extract of the roots of *Murraya koenii* is useful as an antimicrobial formulation for topical or oral administration as clearly taught by the above references. It should be noted that any formulation that is suitable and safe for oral administration would also be considered to be safe for topical application. Therefore, applying an oral formulation topically, would have been obvious to one of ordinary skill in the art.

Thus, an artisan of ordinary skill would reasonably expect that using a whole plant extract of *Murraya koenii* and orally administering said extract would be useful in treating tinea infections. This reasonable expectation of success would motivate the artisan to orally administer a whole plant extract of *Murraya koenii* for tinea infections based upon the beneficial teachings of the above references.

Based upon the beneficial teachings of the cited references, the skill of one of ordinary skill in the art, and absent evidence to the contrary, there would have been a reasonable expectation of success to result in the claimed invention.

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Accordingly, the claimed invention was prima facie obvious to one of ordinary skill in the art at the time the invention was made, especially in the absence of evidence to the contrary.

Conclusion

No claims are allowed.

Any inquiry concerning this communication or earlier communications from the examiner should be directed to Amy L. Clark whose telephone number is (571)272-1310. The examiner can normally be reached on Monday to Friday 7 am to 3:30 pm.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Terry McKelvey can be reached on (571)272-0775. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see <http://pair-direct.uspto.gov>. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/Amy L Clark/
Primary Examiner, Art Unit 1655